

Court No. - 21

Case :- WRIT - C No. - 17973 of 2017

Petitioner :- Sunil Kumar Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravi Sahu

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

Sunil Kumar Gupta is before this Court with the request to issue writ, order or direction in the nature of mandamus directing the respondents authorities to issue electric connection to the shop of the petitioner situated at 34-B, Vivekpuri (Maya Market), Vishwa Bank Barra, Police Station Barra, District Kanpur Nagar.

On the matter being taken up today what we find from the record in question is that petitioner claims that he has moved an application, that has been filed as Annexure No. 1 to the writ petition, but the most surprising feature of the aforementioned application is that there is nothing on record to show and indicate as to whether at any point of time the said application has reached in the office of Executive Engineer, Electric Sub Station, Barra, Kanpur Nagar.

In this direction we posed a specific question to learned counsel for the petitioner and learned counsel for the petitioner proceeded to make statement before us that the copy of the said application has been got received in the office of Executive Engineer, Electric Sub Station, Barra, Kanpur Nagar. Learned counsel for the petitioner is relying before us on a Division Bench judgment of this Court in ***Seema Mansoor Vs. U.P. Power Corporation Ltd. and others, 2014 LawSuit (All) 1860***, for the proposition that there are certain obligations that are to be discharged by the consumer and certain obligations are cast upon electricity company also who is required to supply the energy.

Consequently, in the facts of the case, without entering into the merits of the case, in case, application moved on behalf of the petitioner has reached and is pending before the Executive Engineer, Electric Sub Station, Barra, Kanpur Nagar, then in that event, we hope and trust that the said application be dealt with and decided, in accordance with law, within the time frame, as has been provided for under Electricity Act, 2003 read with Electricity Supply Code, 2005.

With this, writ petition is ***disposed of***.

This order has been passed with due assistance of Sri R.K. Mishra, Advocate, holding brief of Sri S.K. Yadav, Advocate.

Order Date :- 28.4.2017

Shekhar

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Hon'ble Mahesh Chandra Tripathi,J.

No one has turned up to press the correction application. It is, accordingly, rejected for want of prosecution.

Order Date :- 26.5.2017

RKP

Court No. - 21

Civil Misc. Correction Application No. 181476 of 2017

In

Case :- WRIT - C No. - 17973 of 2017

Petitioner :- Sunil Kumar Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravi Sahu

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

The correction application is **allowed**.

The word "**34-B**" occurring in paragraph-1 of the order dated 28.04.2017 shall be read as "**74-B**".

This order shall be treated as part of the order dated 28.04.2017. A certified copy of this order shall be issued along with copy of order dated 28.04.2017.

Learned counsel for the petitioner/applicant is permitted to correct the shop number during the course of the day.

Order Date :- 30.5.2017

Jaswant